



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 27TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
FEBRUARY 3, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ABSENT: none

ORDINANCE NO. 20
Series of 2026

"AN ORDINANCE MANDATING THE RELOCATION OF ALL HOUSEHOLDS RESIDING WITHIN THE DESIGNATED NO BUILD ZONES IN THE MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR PROVIDING FOR ASSISTANCE AND SUPPORT FOR AFFECTED RESIDENTS AND PRESCRIBING PENALTIES FOR NON- COMPLIANCE"

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, the Local Government Code of 1991 (RA No. 7160) empowers Local Government Units to enact ordinances to promote the general welfare of their constituents including the protection of their safety and the regulation of land use;

WHEREAS, the Local Government Unit of Carmen, Province of Surigao del Sur recognizes its responsibility to protect the safety and welfare of its constituents particularly those residing in areas vulnerable to natural hazards;

WHEREAS, certain areas within the Municipality of Carmen, Province of Surigao del Sur have been identified and declared as "No Build Zones" due to their high susceptibility to flooding, landslides, storm surges or other environmental risks rendering them unsafe for residential habitation;

WHEREAS, the presence of residential structures within these "No Build Zones" poses a significant threat to the lives and properties of the occupants as well as hindering the implementation of necessary disaster risk reduction and management measures;

WHEREAS, the National Housing Authority (NHA) and other relevant government agencies offer programs and assistance for the relocation of families residing in danger zones;

WHEREAS, it is the good intention of the Local Government of Carmen, Surigao del Sur to prioritize the safety and well-being of every Carmenanons residing within the danger zones;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. SHORT TITLE- This Ordinance shall be known as the "NO BUILD ZONE RELOCATION ORDINANCE" of the Municipality of Carmen, Province of Surigao del Sur.

Section 2. DECLARATION OF POLICY- It is hereby the policy of the Municipality of Carmen, Province of Surigao del Sur to ensure the safety and welfare of its constituents by mandating the relocation of all households residing within designated "No Build Zones" and providing appropriate assistance and support to facilitate their transfer to safer locations.

Section 3: DEFINITION OF TERMS- For the purpose of this Ordinance, the following terms shall be defined as follows:

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- a) No Build Zones- any area within the Municipality of Carmen, Province of Surigao del Sur has been officially declared as unsuitable for residential habitation due to its vulnerability to natural hazards as determined by competent authorities based on scientific studies and risk assessments. The specific boundaries of these zones shall be clearly defined in a map attached as Annex "A" to this Ordinance and shall be updated if needed.
 - b) Household- a family or group of individuals residing together in a single dwelling unit.
 - c) Relocation- the permanent transfer of a household from a No Build Zone to a safe and habitable area designated by the Local Government Unit of Carmen, Surigao del Sur.
 - d) Resettlement Site- a designated area identified and developed by the Local Government Unit of Carmen, Province of Surigao del Sur in coordination with the National Housing Authority (NHA) and other relevant agencies for the relocation of households from No Build Zones.
 - e) Assistance and Support- the various forms of aid provided by the Local Government Unit of Carmen, Province of Surigao del Sur to households being relocated including but not limited to: financial assistance, transportation assistance, housing materials, livelihood assistance and social services.

Section 4. COVERAGE- This Ordinance shall apply to all households residing within the "No Build Zones" as defined in Section 3 (a) of this Ordinance.

Section 5. MANDATORY RELOCATION- All households residing within the designated “No Build Zones” are hereby mandated to relocate to a resettlement site or other safe locations identified by the Local Government Unit of Carmen, Surigao del Sur.

Section 6. RELOCATION PROCESS-

- a) **Information and Consultation-** The Local Government Unit of Carmen, Province of Surigao del Sur through the Office of the Municipal Disaster Risk Reduction and Management, Municipal Engineering Office, the Municipal Planning & Development Office, the Municipal Social Welfare and Development Office, the Municipal Environment and Natural Resources Office and the Office of the Mayor shall conduct information campaigns and consultations with affected households to explain the rationale for the relocation, the relocation process and the assistance and support available to them.
- b) **Registration and Assessment-** The Municipal Disaster Risk Reduction and Management Office in coordination of the Municipal Planning and Development Office shall conduct a registration and assessment of all households residing within the “No Build Zones” to determine their eligibility for relocation assistance and support.
- c) **Identification and Resettlement Sites-** The Office of the Municipal Mayor in coordination of the Municipal Environment and Natural Resources, Municipal Engineering Office and the National Housing Authority and other relevant agencies shall identify and develop suitable resettlement sites that meet basic needs of the relocated households.
- d) **Allocation of Housing Units/Lots-** housing units or lots in the resettlement sites shall be allocated to eligible households based on a fair and transparent process with the Office of the Municipal Assessor. Priority shall be given to households with the greatest vulnerability and those who have resided in the “No Build Zones” for the longest period.
- e) **Provision of Assistance and Support-** The Local Government Unit of Carmen, Province of Surigao del Sur shall provide the following assistance and support to households being relocated:
 - 1) Financial Assistance for Transportation and other relocation expenses
 - 2) Provision of Housing Materials
 - 3) Livelihood training and employment opportunities
 - 4) Access to basic social services such as health care, education. And social welfare Programs
 - 5) Actual Relocations- the relocation of households shall be conducted in a phased manner with proper coordination and logistical support provided by the Local Government Unit of Carmen, Province of Surigao del Sur.

Section 7. RESPONSIBILITIES OF RELOCATED HOUSEHOLDS-

- a) Relocated households shall be responsible for maintaining their housing units or lots in the resettlement site and adhering to the rules and regulations established by the Local Government Unit of Carmen, Province of Surigao del Sur.
- b) Relocated households shall actively participate in community development activities and livelihood programs.
- c) Relocated households shall not return to reside within the No Build Zones.

Section 8. PROHIBITED ACTS- The following acts are prohibited:

- a) Constructing new residential structures within the designated No Build Zones

- b) Returning to reside within the No Build Zones after being relocated
- c) Obstructing or interfering with the relocation process
- d) Selling, leasing or otherwise transferring ownership of housing units or lots allocated to them in the resettlement site without the prior written consent of the Local Government Unit of Carmen, Surigao del Sur.

Section 9. PENALTIES- Any person who violates any provision of this Ordinance shall be subject to the following penalties.

- a) For violation of Section 8(a) a fine of One Thousand Five Hundred Pesos (Php1,500.00) and demolition of the illegal structures.
- b) For violation of Section 8 (b): a fine of Two Thousand Five Hundred Pesos (Php2,500.00) and forfeiture of all relocation assistance and support.
- c) For violation of Section 8 (c): a fine of Two Thousand Five Hundred Pesos (Php2,500.00) and/or imprisonment for a minimum of 30 days but not more than 60 days or both at the discretion of the proper court.
- d) For violation of Section 8 (d): a fine of Two Thousand Five Hundred Pesos (Php2,500.00) and forfeiture of the housing unit or lot allocated to them in the resettlement site.

Section 10. CREATION OF A RELOCATION TASK FORCE-

- a) A Carmen Relocation Task Force (CRTF) is hereby created to oversee the implementation of this Ordinance.
- b) The CRTF shall composed of representatives from the following offices and agencies.
 - Office of the Mayor
 - SB Member Chairman on Infrastructure
 - MSWDO
 - MENRO
 - MDRRMO
 - Office of the MPDC
 - MEO
 - MASSO
 - PNP/BFP
 - Association of Barangay Captain
 - Local Housing Board
 - President of CSO FOC
- c) The CRTF shall be responsible for:
 - Developing and implementing the relocation plan.
 - Coordinating with relevant Government agencies and Non-Government Organizations.
 - Monitoring the relocation process.
 - Resolving issues and concerns related to relocation.
 - Submitting regular reports to the Sangguniang Bayan thru the SB Chairman on Infrastructure.

Section 11. APPROPRIATIONS- The amount of Three Hundred Thousand Pesos (Php300,000.00) is hereby allocated from the Annual Budget CY 2027 of the Municipality of Carmen, Surigao del Sur for the initial implementation of this Ordinance.

The Local Government Unit of Carmen, Surigao del Sur is authorized to solicit and accept donations, grants and other forms of assistance from various sources to support the relocation program subject to existing accounting and auditing rules and regulations.

Section 12. IMPLEMENTING RULES & REGULATIONS- The Carmen, Relocation Task Force (CRTF) shall formulate the necessary implementing Rules and Regulations (IRR) to effectively implement this Ordinance within the Three Months from its approval. The IRR shall be submitted to the Sangguniang Bayan for review and approval.

Section 13. SEPARABILITY CLAUSE- If, for any reason, any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall remain in full force and effect.

Section 14. REPEALING CLAUSE- All Ordinances, rules and regulations or parts thereof, inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

Section 15. EFFECTIVITY CLAUSE- This Ordinance shall take effect 21 days after its posting in at least two (2) conspicuous places of every Barangay within the territorial jurisdiction of the Municipality of Carmen, Province of Surigao del Sur.

ENACTED this 3rd day of February, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
2-16-2026